M&A / REGULATORY STRATEGY

EU MERGER CONTROL

Regulatory Intelligence & M&A Diligence Strategy

A decision-focused assessment of published European Commission merger-control cases



10,376
historical cases

3.09%
Phase II initiation

5.05%
conditional clearance

Public-data case study · Simulated client

EXECUTIVE RECOMMENDATION

Act on the deal facts—not historical clearance odds

The evidence highlights where to investigate; it cannot decide a specific acquisition.

Recommendation

Commission a counsel-led filing and competition screen before fixing a closing timetable.

01 **ESTABLISH FILING EXPOSURE**

Check jurisdictions, control, turnover and notification thresholds.

Output: verified filing map

02 **TEST COMPETITION CONCERNS**

Map buyer/target overlaps, market shares and relevant precedents.

Output: issues register

03 **PROTECT TRANSACTION TIMING**

Prepare in-depth review and remedy contingencies before commitment.

Output: gated closing plan

Management ask: approve the initial 10-day fact-finding mandate

CLIENT DECISION

Three uncertainties must be resolved before commitment

Hypothetical international acquirer; no buyer, target or transaction terms have been supplied.

JURISDICTION

Where is a filing required?

Parties, ownership and control; turnover; EU and national thresholds.

Required output

Counsel-signed filing assessment

COMPETITIVE EFFECTS

Where might concerns arise?

Products, territories, shares, rivals, customers and market overlaps.

Required output

Competition concerns register

DEAL EXECUTION

What could delay or reshape closing?

Signing conditions, review scenarios, remedies, financing and timing.

Required output

Regulatory readiness plan

Critical gap: Historical records contain no verified deal-specific filing or market-overlap facts.

The same source supports several different populations

Always show the numerator, denominator and grain before drawing a conclusion.

DISTINCT MERGER CASES	DECISION EVENTS	SECTOR MEMBERSHIPS	PHASE II HISTORIES
10,376	11,579	16,286	309

Eligibility is question-specific

9,993	9,968	9,708	9,678	9,390
Phase II rate	Outcome analysis	Timing comparison	Eligible clearances	Adjusted model

2026 is a partial reporting year. Sector memberships overlap, and decision events are not unique cases.

Phase I unconditional clearances dominate the classified records

The 9,968 classified outcomes are a historical baseline—not deal-specific clearance probabilities.

91.6%

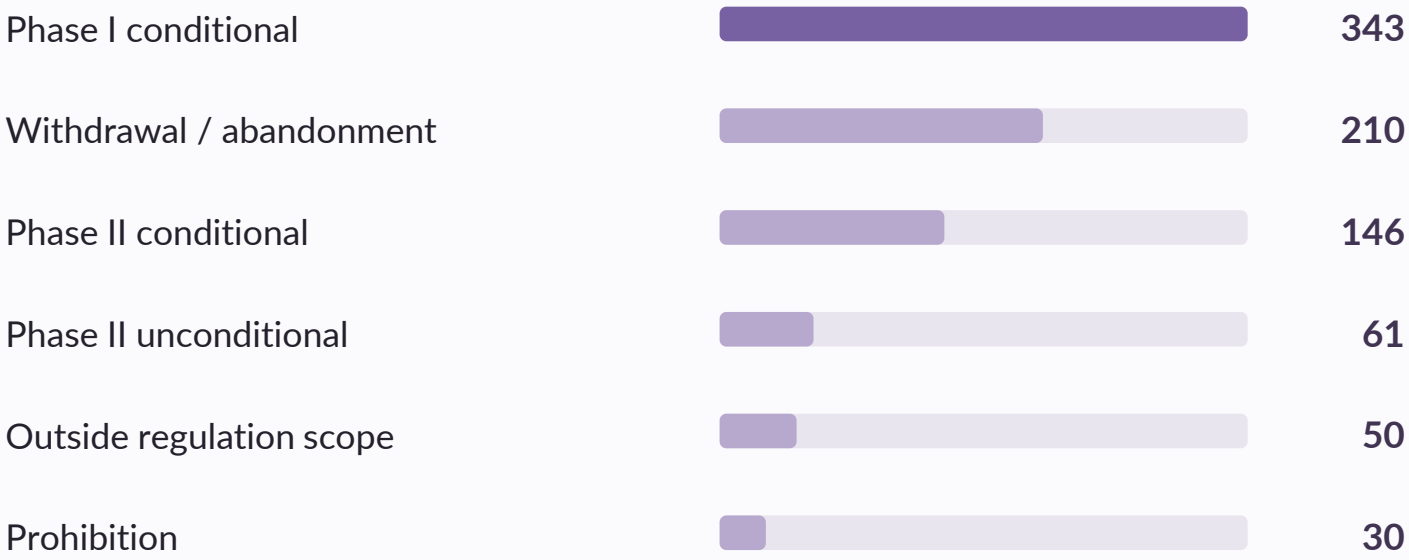
Phase I unconditional

9,128 of 9,968 classified cases

Management reading

Common clearance routes do not rule out transaction-specific competition concerns.

Other classified outcomes



Conditional clearance: 489 of 9,678 eligible clearances = 5.05%

Phase II initiation is uncommon—but the pathway is consequential

Reconstructed later decisions require care: they are not independently verified final legal outcomes.

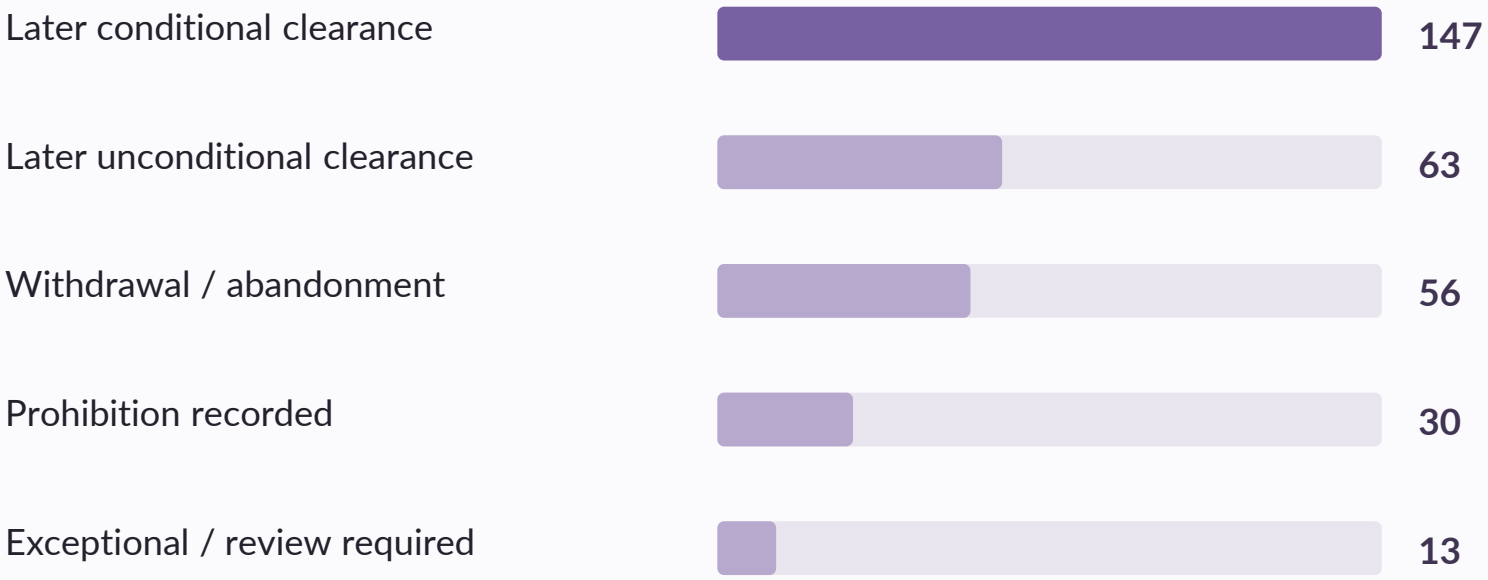
3.09%

Phase II initiation

309 of 9,993 eligible cases

296 without pathway-audit flags
13 exceptional histories

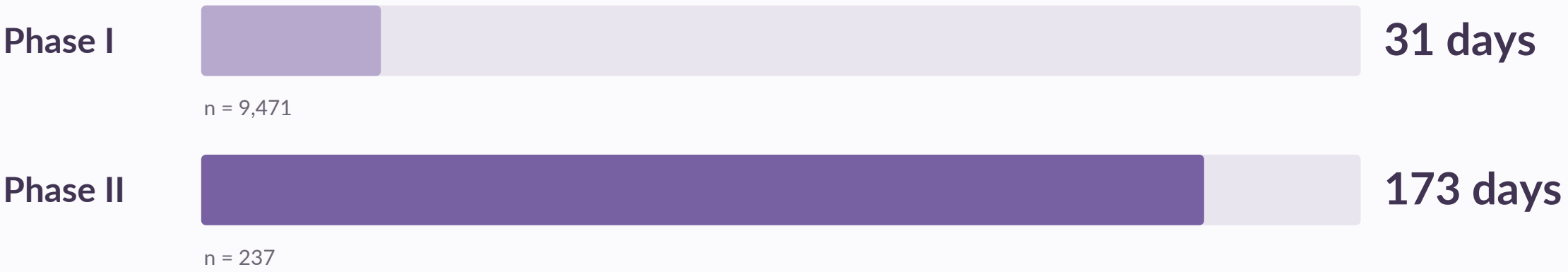
Subsequent pathways among 309 cases



147 reconstructed later conditional pathways ≠ 146 strict case-level conditional outcomes.

Observed Phase II review intervals are substantially longer

Case-level notification-to-selected-decision calendar days; not statutory working-day deadlines.



142 days

difference between medians

138–151 days

bootstrap 95% CI

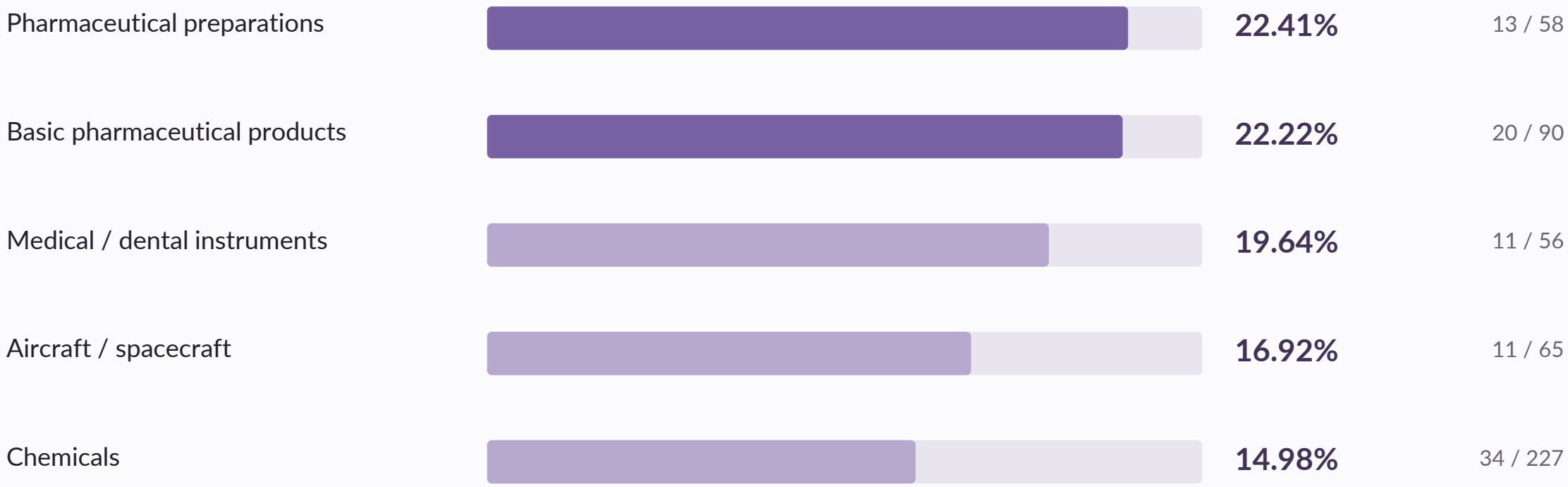
$p \approx 2.32 \times 10^{-153}$

two-sided Mann–Whitney U

Decision: require an in-depth review scenario in the closing plan and obtain a separate statutory clock assessment from competition counsel.

Sector patterns help choose investigations—not forecast a deal

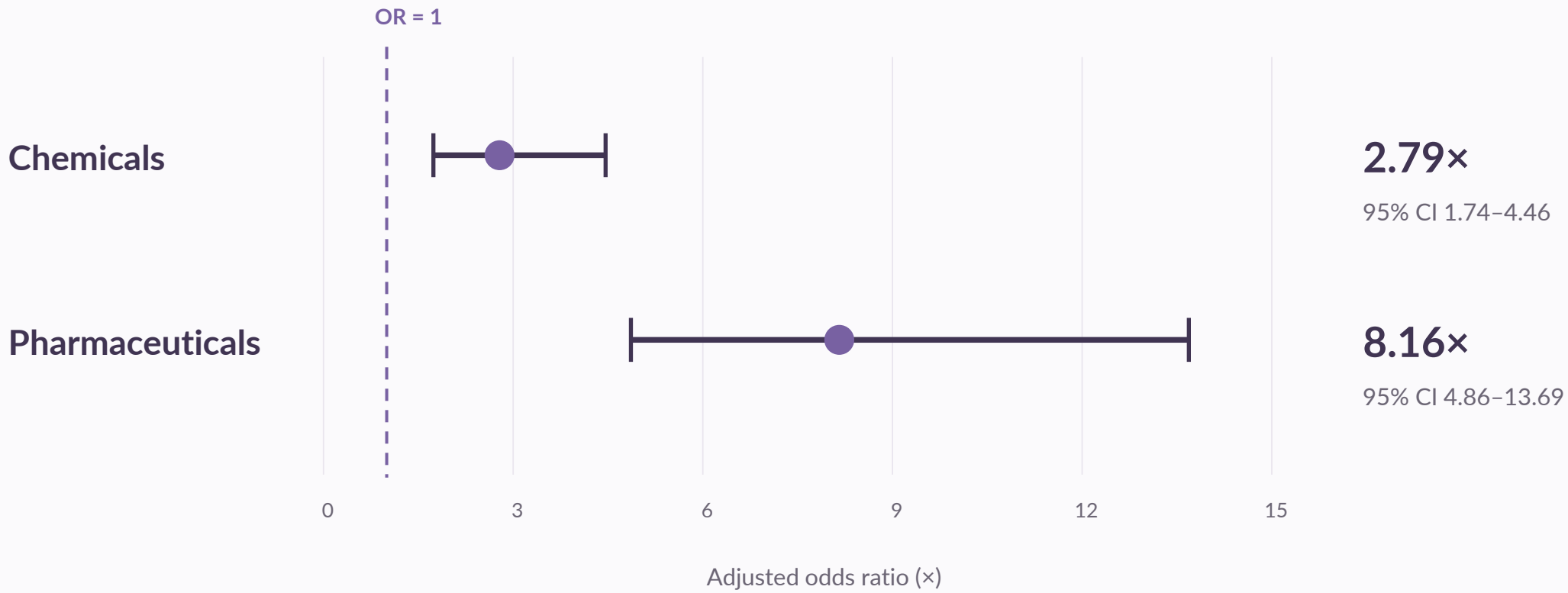
Highest raw conditional-clearance rates among codes with ≥50 eligible clearances.



Overall: 489 / 9,678 = 5.05% • Sector-represented: 485 / 9,602 = 5.05% • 51 qualifying codes; memberships overlap.

Adjusted associations strengthen the case for focused screening

Logistic regression: adjusted odds ratios with 95% confidence intervals; n = 9,390.



Both displayed indicators survived Holm correction. These are odds associations—not causal effects or transaction-specific clearance probabilities.

EVIDENCE-TO-ACTION LOGIC

Turn historical findings into a practical diligence brief

The value of the analysis lies in the questions it changes, not in a prediction of the regulator.

OBSERVED SIGNAL	MANAGEMENT INTERPRETATION	CONCRETE NEXT ACTION	LEAD OWNER
3.09% Phase II share	Do not assume the exceptional route is irrelevant.	Prepare an in-depth review contingency.	Transaction PMO + counsel
31 / 173-day medians	Historical calendar intervals are not legal clocks.	Build reviewed calendar and working-day scenarios.	Competition counsel
Sector ORs 2.79× / 8.16×	Associations can point to issues, not causation.	Investigate actual horizontal/vertical overlaps.	Competition economists
5.05% conditional clearances	Some deals may require commitments.	Test remedy feasibility and commercial cost.	Strategy + legal

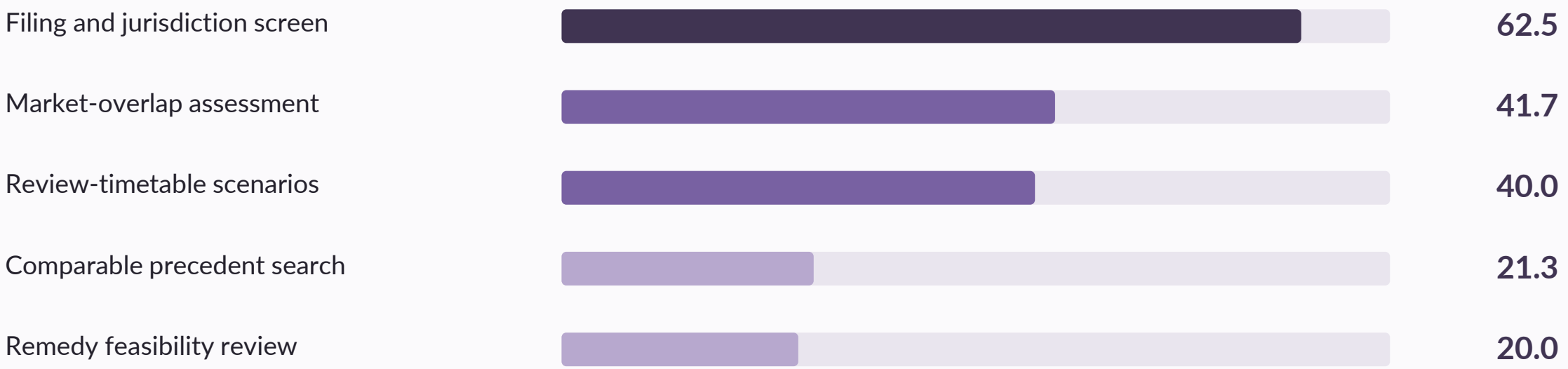
Owner + evidence source + written finding + unresolved-risk flag + decision gate = required standard for every workstream

PRIORITISATION FRAMEWORK

DCES ranks investigations likely to change a decision

Decision-Changing Evidence Score is an illustrative management heuristic—not an estimated deal probability.

DCES = (Impact × Uncertainty Reduced × Actionability) ÷ Effort



I Impact

U Uncertainty reduced

A Actionability

E Effort

All four dimensions use illustrative 1–5 scores. Filing obligations remain mandatory irrespective of ranking.

Three workstreams create decision-ready evidence

Each investigation must produce an accountable owner, a documented finding and a management action.

01 SCREEN

Filing exposure

Transaction parties, control, turnover and cross-border filing thresholds.

LEAD OWNER

Competition counsel + corporate development

DELIVERABLE

Filing map and jurisdiction assessment

02 ASSESS

Competition concerns

Relevant markets, market shares, competitor positions and remedy precedents.

LEAD OWNER

Competition economists + commercial leads

DELIVERABLE

Competition concerns register

03 PLAN

Execution contingencies

Possible in-depth review, financing dependencies, commitments and closing constraints.

LEAD OWNER

Legal + transaction PMO + investment committee

DELIVERABLE

Regulatory readiness plan

DELIVERY ROADMAP

A 90-day diligence plan with four management gates

Indicative advisory delivery phases—not predicted merger-review timings or legal deadlines.

Days 0–10

Transaction fact pack

Accountable owner

Corporate development + counsel

G1 Filing scope credible?

Days 11–30

Market-overlap matrix

Accountable owner

Economists + commercial team

G2 Material concerns?

Days 31–60

Precedent and remedy brief

Accountable owner

Counsel + strategy

G3 Feasible deal structure?

Days 61–90

Regulatory readiness plan

Accountable owner

Transaction PMO + investment committee

G4 Proceed / revise / pause?

Operating rhythm Weekly evidence review · Fortnightly steering decision · Immediate escalation for deal-critical risks

Decision gates must trigger choices, not just reporting

A regulatory screen is valuable only when findings can alter timing, structure or investment appetite.

G1 JURISDICTION

Are the filing facts and counsel assessment credible?

G2 COMPETITION

Are material overlaps or market issues unresolved?

G3 REMEDIES

Are remedies workable without damaging deal value?

G4 EXECUTION

Can closing commitments withstand review contingencies?

Prepare three deal scenarios

Baseline

Filing plan and standard information requests

In-depth review

Longer review, financing and conditional closing flexibility

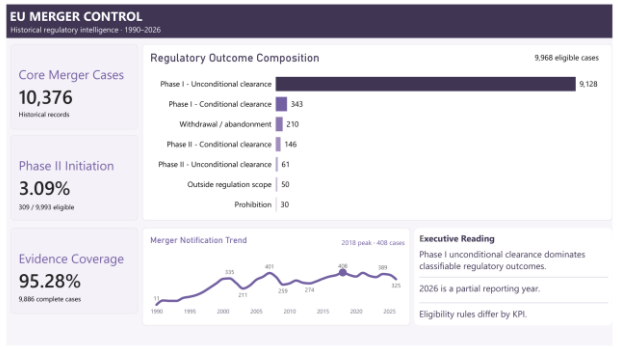
Remedy / restructuring

Commitment feasibility, commercial cost and revised deal perimeter

Escalate if statutory obligations are uncertain, remedies threaten the acquisition thesis or financing / closing cannot absorb a credible review scenario.

Four Power BI views support a coherent diligence story

Interactive dashboards consolidate evidence; the proposed workplan remains distinct from implemented action.



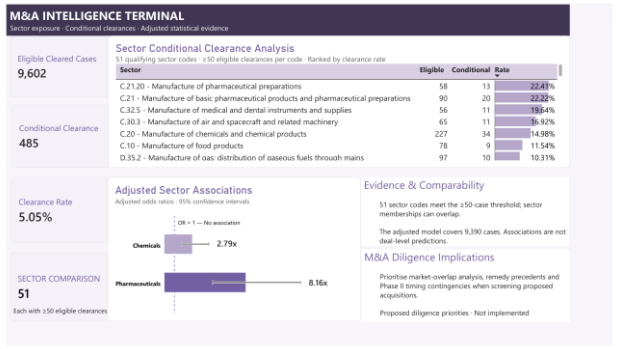
Executive Dossier

Scale, outcomes and reporting coverage



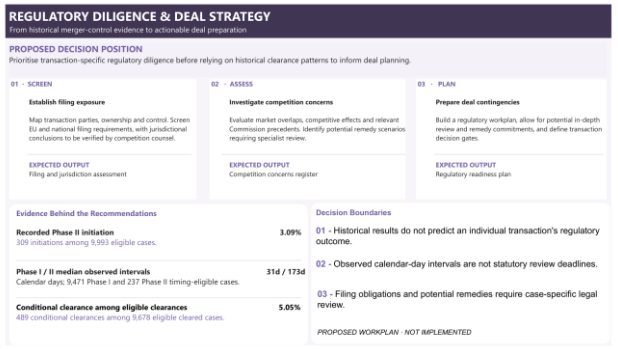
Review Pathways

Decisions, elapsed days and audit status



M&A Intelligence

Sector exposure and adjusted evidence



Deal Strategy

Proposed workstreams and decision limits

Evidence supports diligence priorities—not legal conclusions

State what is known, what remains unverified, and what must not be inferred.

Published-case selection	Records are not every potential or unnotified acquisition.
2026 is partial	Do not compare incomplete annual totals with full years.
Case populations differ	Numerators, denominators and membership overlap must be explicit.
Observed vs statutory time	Calendar-day intervals do not reproduce legal review clocks.
Association ≠ causation	Sector odds ratios cannot predict an individual deal outcome.

Primary sources

1. **European Commission**
   Merger cases search and guidance
2. **EU open data**
   Commission merger case publications
3. **European Commission**
   Merger procedures and EU Merger Regulation

Assurance status

Historical counts and reported test outputs checked. This is not an independently certified legal-case reconstruction or a full PBIX DAX / interaction audit.

Source links and fuller analytical definitions appear in the accompanying consulting report.

CONCLUSION

Historical evidence should set the questions—not decide the deal.

Recommended management decision

01 AUTHORISE

A 10-day counsel-led filing and fact-screening mandate.

02 RESOURCE

Market-overlap and remedy analysis where deal facts justify it.

03 GOVERN

A conditional closing plan with explicit G1–G4 decision gates.

Proceed only when transaction-specific evidence supports the regulatory position, deal structure and timetable.